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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/153,647	01/12/2023	Michael Bauer-Wesely	7291-01800	2248

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EXAMINER	
LEWIS-TAYLOR, DAYTON A.	

ART UNIT	PAPER NUMBER
2181	

NOTIFICATION DATE	DELIVERY MODE
06/04/2025	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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Office Action Summary	Application No. 18/153,647	Applicant(s) Bauer-Wesely et al.	
	Examiner DAYTON A LEWIS-TAYLOR	Art Unit 2181	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☑ Responsive to communication(s) filed on 12 January 2023.

☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2a)☐ This action is **FINAL.** 2b) ☑ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

5) ☑ Claim(s) 1-20 is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6) ☐ Claim(s) _____ is/are allowed.

7) ☑ Claim(s) 1-7,9 and 11-19 is/are rejected.

8) ☑ Claim(s) 8,10 and 20 is/are objected to.

9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to **PPHfeedback@uspto.gov.**

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☑ The drawing(s) filed on 12 January 2023 is/are: a)☑ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

12)☑ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

a)☑ All b)☐ Some** c)☐ None of the:

1.☑ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☑ Notice of References Cited (PTO-892)

2) ☑ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b) Paper No(s)/Mail Date 01/12/2023, 04/06/2023, 05/28/2024.

3) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date _____.

4) ☐ Other: _____.

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

2. Claims 1-20 are pending.

Priority

3. Acknowledgment is made of applicant's claim for foreign priority under 35 U.S.C. 119 (a)-(d). Receipt is acknowledged of certified copies or papers required by 37 CFR 1.55.

Information Disclosure Statement

4. The information disclosure statement (IDS) submitted on 01/12/2023, 04/06/2023 and 05/28/2024 is in compliance with the provisions of 37 CFR 1.97. Accordingly, the information disclosure statement is being considered by the Examiner.

Claim Rejections - 35 USC § 103

5. In the event the determination of the status of the application as subject to AIA 35 U.S.C. 102 and 103 (or as subject to pre-AIA 35 U.S.C. 102 and 103) is incorrect, any correction of the statutory basis (i.e., changing from AIA to pre-AIA) for the rejection will not be considered a new ground of rejection if the prior art relied upon, and the rationale supporting the rejection, would be the same under either status.

The following is a quotation of 35 U.S.C. 103 which forms the basis for all obviousness rejections set forth in this Office action:

> A patent for a claimed invention may not be obtained, notwithstanding that the claimed invention is not identically disclosed as set forth in section 102, if the differences between the claimed invention and the prior art are such that the claimed invention as a whole would have been obvious before the effective filing date of the claimed invention to a person having ordinary skill in the art to which the claimed invention pertains. Patentability shall not be negated by the manner in which the invention was made.

6. **Claims 1-7, 9, 11-16, 18 and 19** are rejected under 35 U.S.C. 103 as being unpatentable over Mayer et al. (US Pub. No. 2022/0365506 A1 hereinafter "Mayer") in view of Jagiella et al. (US Pub. No. 2015/0046125 A1 hereinafter "Jagiella").

Referring to claim 1, Mayer discloses a method for changing software data of a field device, wherein the field device has a housing ***(Mayer – Par. [0067] discloses field device housing.)*** and wherein applied to or in the housing is a first device code that can be detected using a mobile device at close range ***(Mayer – Fig. 1 & par. [0046, 0084-0085] disclose the field device is an automation component AK providing the identification information via an output unit OU as machine interpretable code CD ready to be queried. The machine interpretable code CD is in this example a QR code. Service device SD is in a close range to read the code CD from automation component AK.)***, the method comprising:

detecting, in a first identification step, the first device code by a reader unit of the mobile device ***(Mayer – Fig. 1 & par. [0085] disclose the service device SD reads the code CD by means of a camera and interprets such, i.e. the service device extracts the identification information contained in the code CD.)***;

detecting, by the mobile device in a second identification step, a second device code associated with the field device ***(Mayer – Fig. 1 & par. [0094] disclose the automation component AK provides the acknowledgment request via an output unit OU as machine interpretable code CD on the output unit OU. The machine interpretable code CD is, again, a***

QR code. The service device SD reads the code CD by means of the camera and interprets such, i.e. the service device extracts the acknowledgment request contained in the code CD.).

Mayer fails to explicitly disclose accessing, by the mobile device, primary device data of the field device; converting the primary device data to secondary device data; subsequent to detecting the second device code, transmitting the secondary device data to the field device; and utilizing, by the field device in a completion step, the secondary device data.

Jagiella discloses accessing, by the mobile device, primary device data of the field device ***(Jagiella – Par. [0047] discloses the current pH-value registered by the pH-sensor 4 and/or the temperature value currently registered by the temperature sensor 6 can be transmitted to the service device 13 and displayed by such.)***;

converting the primary device data to secondary device data ***(Jagiella – Par. [0049] discloses a calibration of the pH-sensor 4 can be performed by means of the servicing software executable in the service device 13, wherein the calibration measured values ascertained in calibration measurements in buffer solutions are transmitted via the PLC 20 to the service device 13, which ascertains corresponding new calibration parameters, for example, zero-point and slope of a sensor characteristic curve, by means of the servicing software of the service device 13, and transmits such back to the PLC 20, where such are stored in the database stored in the memory 17.)***;

transmitting the secondary device data to the field device; and utilizing, by the field device in a completion step, the secondary device data ***(Jagiella – Par. [0049] discloses transmits corresponding new calibration parameters back to the PLC 20, where such are stored in the database stored in the memory 17. Additionally or alternatively, the PLC 20 can forward the newly ascertained calibration parameters also via the field device transceiver 11 to the sensor electronics 9, where they are stored in a memory.)***.

It would have been obvious to one of ordinary skill in the art, before the effective filing date of the claimed invention, to include Jagiella's teachings with Mayer's techniques for the benefit of providing a method for servicing a field device and enabling servicing of the field device on-site, even when there is on-site no permanently installed display and input apparatus associated with the field device (Jagiella – Par. [0011]).

Referring to claim 2, Mayer and Jagiella discloses the method according to claim 1, wherein the first device code is formed as at least one of: an optically detectable passive code, an optically detectable active code, an acoustically detectable code or an inductive Near Field Code (NFC) ***(Mayer – Par. [0036] discloses an optical code, especially a QR code, a flicker code, or a barcode, is used as a first code and/or as a second code.)***.

Referring to claim 3, Mayer and Jagiella discloses the method according to claim 1, wherein the second device code is the same as the first device code ***(Mayer – Par. [0036] discloses an optical code, especially a QR code, a flicker code, or a barcode, is used as a first code and/or as a second code.)***.

Referring to claim 4, Mayer and Jagiella discloses the method according to claim 1, wherein detecting the second device code of a given field device ***(Mayer – Fig. 1 & par. [0094] disclose the automation component AK provides the acknowledgment request via an output unit OU as machine interpretable code CD on the output unit OU. The machine interpretable code CD is, again, a QR code. The service device SD reads the code CD by means of the camera and interprets such, i.e. the service device extracts the acknowledgment request contained in the code CD.)*** and transmitting the secondary device data by the mobile device to the given field

device are performed prior to detecting a second device code of another field device ***(Jagiella – Par. [0049] discloses transmits corresponding new calibration parameters back to the PLC 20, where such are stored in the database stored in the memory 17. Additionally or alternatively, the PLC 20 can forward the newly ascertained calibration parameters also via the field device transceiver 11 to the sensor electronics 9, where they are stored in a memory.)***.

Referring to claim 5, Mayer and Jagiella discloses the method according to claim 1, further comprising, immediately before or after transmitting the secondary device data to the field device, receiving, by the mobile device in a first verification step, a first physical signal sent by the field device ***(Mayer – See Par. [0038-0039].)***.

Referring to claim 6, Mayer and Jagiella discloses the method according to claim 5, wherein the first physical signal comprises a light signal sent using a light-emitting diode (LED) or an audio signal ***(Mayer – See Par. [0038-0039] disclose the first physical signal is an audio signal.)***.

Referring to claim 7, Mayer and Jagiella discloses the method according to claim 5, further comprising receiving, by the mobile device in a second verification step after the first verification step, a second physical signal sent by the field device ***(Jagiella – See Par. [0038-0039].)***.

Referring to claim 9, Mayer and Jagiella discloses the method according to claim 1, further comprising, before detecting the first device code, sending, by the field device, a physical

information signal detectable by the mobile device or an operator of the mobile device ***(Jagiella – See Par. [0041-0042].)***.

Referring to claim 11, note the rejections of claim 1 above. The Instant Claim recites substantially same limitations as the above-rejected and is therefore rejected under same prior-art teachings.

Referring to claim 12, note the rejections of claim 3 above. The Instant Claim recites substantially same limitations as the above-rejected and is therefore rejected under same prior-art teachings.

Referring to claim 13, Mayer and Jagiella discloses the system of claim 11, wherein the superordinate device unit is configured to activate the field device and perform communication between the field device and the mobile device ***(Jagiella – See Fig. 1 and Abstract)***.

Referring to claim 14, Mayer and Jagiella discloses the system of claim 11, further comprising at least one control unit and at least one data store ***(Jagiella – Fig. 1 & par. [0043-0044] disclose a PLC 20 and a memory 17.)***.

Referring to claim 15, Mayer and Jagiella discloses the system of claim 14, wherein the superordinate device unit includes the at least one control unit and at least one data store ***(Jagiella – Fig. 1 & par. [0043-0044] disclose a superordinate data processing system 3 having a PLC 20 and a memory 17.)***.

Referring to claim 16, note the rejections of claim 5 above. The Instant Claim recites substantially same limitations as the above-rejected and is therefore rejected under same prior-art teachings.

Referring to claim 18, Mayer and Jagiella discloses the system of claim 16, wherein the field device comprises a coil, actuator, or other component and the first physical signal ***(Mayer – See Par. [0002] disclose an actuator as a field device.)*** comprises an audio signal ***(Mayer – See Par. [0038-0039] disclose the first physical signal is an audio signal.)***.

Referring to claim 19, note the rejections of claim 7 above. The Instant Claim recites substantially same limitations as the above-rejected and is therefore rejected under same prior-art teachings.

7. **Claim 17** is rejected under 35 U.S.C. 103 as being unpatentable over Mayer in view of Jagiella, and further in view of Shah et al. (US Pub. No. 2021/0333780 A1 hereinafter "Shah").

Referring to claim 17, Mayer and Jagiella discloses the system of claim 16, however, fail to explicitly disclose wherein the field device comprises one or more light-emitting diodes (LEDs) and the first physical signal comprises a light signal.

Shah discloses the field device comprises one or more light-emitting diodes (LEDs) and the first physical signal comprises a light signal ***(Shah – Par. [0028] discloses the field device or the operating module has a light-emitting component, especially an LED, which is designed to output a first light signal.)***.

It would have been obvious to one of ordinary skill in the art, before the effective filing date of the claimed invention, to include Shah's teachings with Mayer and Jagiella's techniques

for the benefit of increasing the operating comfort for an automation engineering field device which has operating elements without haptic feedback. (Shah – Par. [0010]).

Allowable Subject Matter

8. **Claims 8, 10 and 20** are objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

The examiner finds that the prior art of record taken alone or in combination fails to teach and/or fairly suggest *"sending, by the field device and before the first or the second verification step, a test data set to a superordinate device unit; comparing, by the superordinate device unit, the test data set with target test data; and based on an agreement between the test data set and the target test data, sending, by the superordinate device unit, a confirmation data set to the field device, and wherein the first or second verification step or the completion step is triggered by the field device only after a receipt of the confirmation data set by the field device.",* in combination with other recited limitations in dependent claim 8.

The examiner finds that the prior art of record taken alone or in combination fails to teach and/or fairly suggest *"before the first or the second verification step: receiving, by a superordinate device unit, an operator ID from an operator of the mobile device; comparing, by the superordinate device unit, the operator ID with a target operator ID; and based on an agreement of operator ID with the target operator ID, sending, by the superordinate device unit, an approval to carry out the first or second verification step, the second identification step or the completion step.",* in combination with other recited limitations in dependent claim 10.

The examiner finds that the prior art of record taken alone or in combination fails to teach and/or fairly suggest *"wherein the superordinate device unit is configured to: receive a test*

data set from the field device; compare the test data set with a target test data set; and based on an agreement between the test data set and the target test data set, send a confirmation data set to the field device.", in combination with other recited limitations in dependent claim 20.

Conclusion

The examiner requests, in response to this office action, support be shown for language added to any original claims on amendment and any new claims. That is, indicate support for newly added claim language by specifically pointing to page(s) and line number(s) in the specification and/or drawing figure(s). This will assist the examiner in prosecuting the application. When responding to this office action, applicant is advised to clearly point out the patentable novelty which he or she thinks the claims present, in view of the state of art disclosed by the references cited or the objections made. He or she must also show how the amendments avoid such references or objections. See 37 C.F.R.I .Ill(c).

In amending in reply to a rejection of claims in an application or patent under reexamination, the applicant or patent owner must clearly point out the patentable novelty which he or she thinks the claims present in view the state of the art disclosed by the references cited or the objections made. The applicant or patent owner must also show how the amendments avoid such references or objections.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to DAYTON LEWIS-TAYLOR whose telephone number is (571) 2707754. The examiner can normally be reached on Monday through Thursday, 8AM TO 4PM, EASTERN TIME.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Idriss Alrobaye, can be reached on (571) 270-1023. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Dayton Lewis-Taylor/
Examiner, Art Unit 2181